

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**VERIFIED MOTION UNDER RULE 1.540(B)(4) AND (B)(3) TO VACATE
COUNT 8 (DECLARATORY RELIEF REGARDING “TOKE OIL & GAS,
S.A.” [sic]¹) AS VOID OR PROCURED BY MISREPRESENTATION**

Defendant, pro se, moves under Fla. R. Civ. P. 1.540(b)(4) to vacate Count 8 of the Final Judgment as void, and under Rule 1.540(b)(3) to vacate the same count as procured by fraud, misrepresentation, or other misconduct. Count 8 declares that “DeepGulf, Inc. is the sole owner of Toke Oil & Gas, S.A.” —even though no competent, admitted evidence established that “Toke Oil & Gas, S.A.” exists as a juridical person with legal capacity, that

¹ *Nomenclature*. The Final Judgment and Plaintiffs’ filings variously style the entity as “Toke Oil & Gas, S.A.” and, earlier, “Toke Oil and Gas, Inc.” [sic]. Defendant uses “Toke Oil and Gas S.A.” (no comma) for consistency. Plaintiffs have filed no competent corporate formation/registry documents establishing the entity’s correct legal name, jurisdiction, or capacity; the misnomers underscore the absence of proof of juridical existence and authority (Count 8).

any authorized body permitted suit or transfer, or that any chain of title vests “sole ownership” in DeepGulf.

Decision on the papers (no hearing requested).

Procedural Posture (brief)

Count 8 grants declaratory relief that determines corporate ownership rights. The record contains no certificate of incorporation/formation, no governing-law proof, no stock ledger or assignments, and no board or shareholder authorizations concerning “Toke Oil & Gas, S.A.” Defendant has repeatedly noticed these defects across 2018–2025 filings; none were addressed in the Final Judgment.

Legal Standards

- **Rule 1.540(b)(4):** A judgment is void if the court lacked power to render it or if fundamental due process is absent.
- **Rule 1.540(b)(3):** A judgment may be set aside for fraud, misrepresentation, or other misconduct of an adverse party that prevented a full and fair presentation of the case.

Argument

I. Count 8 is void under Rule 1.540(b)(4)

1. **No juridical res / capacity shown.** Declaratory relief awarding “sole ownership” of “Toke Oil & Gas, S.A.” presupposes that “Toke Oil & Gas, S.A.” exists as a legal person capable of owning rights. Plaintiffs introduced no competent evidence of that entity’s existence under any foreign or domestic law, no registration, and no authority documents. A declaration over a non-existent or unproven entity is beyond the court’s power and void.
2. **No chain of title or authority.** The judgment cites no assignments, stock registers, minutes, or resolutions vesting “Toke” in DeepGulf or authorizing any transfer. Without proof of title and corporate authority, the court cannot validly declare DeepGulf the “sole owner.”
3. **Failure to join indispensable interests (due process).** If “Toke Oil & Gas, S.A.” existed, any other purported owners, shareholders, or directors would have an interest in the entity adjudicated “solely” owned by DeepGulf. Count 8 adjudicates their property rights in absentia, violating due process and rendering the declaration **void**.
4. **Internal inconsistency with the record.** The record reflects that

“Toke” was treated by DeepGulf’s own bank as a DBA, not as a separate legal person; no contrary corporate proofs were admitted. A declaration of “sole ownership” of a non-person, or without corporate proofs, is legally null.

II. Alternatively, Count 8 was procured by misrepresentation under Rule 1.540(b)(3)

1. **Existence/authority misrepresented or withheld.** Plaintiffs represented, in effect, that “Toke Oil & Gas, S.A.” existed and was subject to ownership by DeepGulf, yet produced no corporate formation documents, authorizations, or chain of title. Treating a DBA as a foreign corporation misled the court and prevented a fair contest on corporate capacity and ownership.
2. **Inconsistent status narratives to obtain relief.** Plaintiffs advanced inconsistent positions regarding governance and director status (e.g., who could authorize actions, when), while simultaneously seeking a sweeping ownership declaration. These inconsistencies were used to secure the declaration and to avoid the evidentiary burden of corporate proofs.
3. **Prejudice.** The court relied on Plaintiffs’ representations to enter a

declaration that directly affects property rights and the scope of other counts, while depriving Defendant of the chance to confront corporate capacity, authority, and ownership with proper proofs.

Relief is warranted even if misrepresentation was not “intrinsic,” because it prevented a fair submission of the case on corporate capacity/ownership.

Requested Relief

Defendant respectfully requests that the Court:

1. **VACATE Count 8** of the Final Judgment as **void** under Rule **1.540(b)(4)**;
2. **Alternatively**, VACATE Count 8 under Rule **1.540(b)(3)** for fraud/misrepresentation;
3. Grant such other and further relief as is just.

(Defendant does not request leave for Plaintiffs to supplement corporate proofs; if the Court declines to vacate, Defendant requests written findings identifying the admitted documents that establish (i) “Toke Oil & Gas, S.A.” exists and has capacity, and (ii) chain of title and authority vesting sole ownership in DeepGulf. If no such admitted evidence exists, Count 8 must be vacated.)

Verification (Fla. Stat. § 92.525)

I declare under penalty of perjury that: to my knowledge, “Toke Oil & Gas S.A.” has no separate legal existence and was treated by DeepGulf’s bank as a DBA; Plaintiffs filed no competent, admitted evidence of Toke’s juridical existence/capacity, no stock or assignment chain, and no board or shareholder authorization to sue or transfer; and the Court’s declaration of DeepGulf as “sole owner” lacks those prerequisites.

Date: September 8th, 2025

Marc Moszkowski, Defendant (pro se)



Respectfully submitted this 8th day of September, 2025

Marc Moszkowski, Pro Se

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Le Verdos

83300 Châteaudouble, France



CERTIFICATE OF SERVICE

I hereby certify that, on this 8th day of September, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Maczkowski